TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
SPECIAL BOARD OF ZONING APPEALS
DECEMBER 15, 2025
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Cheryll Woods Flower, Giles Branch, Brian Stress, Joan Spier, Elliott Barrow.
Absent: Megan Stevens.
Staff: Michael Robertson, Matt Simms, James Ward, Michele Reed, Lynnette Lynes
Also: Ginny Bozeman, attorney for Board
Brian Quisenberry, attorney for staff

Mr. Wood called the meeting to order at 12:07 pm.

A. Approval of Agenda

Mr. Wood moved for approval of the agenda with moving item A-06-25 to #1 under Business. Mr. Branch seconded the motion. All in favor.

B. Approval of Minutes
C. Public Comment

There being no minutes to approve and no public comment, Mr. Wood continued with the agenda.

D. General Correspondence

All correspondence was linked to the agenda.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Executive Session for the Purpose of Receiving Legal Advice Related to Case A-05-25 (767 3rd Street, TMS# 535-13-00-138) and Case A-06-25 (108 2nd Street, TMS# 514-05-00-077)

Mr. Wood moved to convene into executive session for legal advice. Ms. Spier seconded the motion. All in favor.

The Board convened into executive session at 12:12 pm.

H. Post Executive Session Board may take action on any item, including any subsection of any section, listed on an executive session agenda or discussed in an executive session during a properly noticed meeting

The Board reconvened at 12:50 pm. No action was taken during executive session.

Ms. Woods-Flowers moved to amend the hearing procedure to allow a five-minute presentation time and a three-minute response time for property owner Nathaniel Horton. Mr. Branch seconded the motion. All in favor.

I. Business

1. **Case A-06-25, 108 2nd Street, TMS# 514-05-00-077,** Appeal of Zoning Official's determination of zoning compliance with §156.303 Residential Use Districts (C) Lot, yard, height, and coverage requirements [Table] Minimum Yard Requirements and §156.106 Setbacks and Yard Requirements (B). Staff Presentation Staff Review Timeline Correspondence

Mr. Robertson reviewed staff presentation with the Board.

Mr. Ross Appel, representative for the appellant that lives adjacent to the subject property, reviewed the request with the Board.

Mr. Branch moved for approval to accept the PowerPoint Presentation as part of the record. Ms. Woods-Flowers seconded the motion. All in favor.

Mr. Brandon Gaskin, representative for Mr. Horton, reviewed the basis of their position with the Board.

Mr. Wood asked as a point of order if the appellant would be allowed to speak since their representative has provided a presentation. Ms. Bozeman answered in the affirmative and stated that the time would be limited to the two and half minute time allowed for public comment.

- Mr. Jim Jones, 112 2nd St, adjacent to the subject property and one of the appellants, stated that when building his home, he asked where the setbacks for his property would be administered. He stated that based on the requirements, it limited the placement and size of the home he was allowed to build. He suggested that in fairness the same rules he had to adhere to should apply to his neighbor.

- Ms. Kelly McSweeney, 138 3rd Ave, suggested that the intention for the front setback was the front of the house facing the street. She suggested that the front setback should be applied in that manner. She expressed concern that if not applied in this manner it could set a precedent and mean more homes closer to the street .

- Mr. John Sirigos, 85 Fifth Ave, expressed concern with flooding and storm events and that building closer to the marsh could mean significant destruction of the home during storm events due to high winds and tidal rise. He suggested that during significant hurricanes, the homes in the area had significant damage.

- Ms. Jaclyn Gore, 308 6th Ave, suggested that the character of the historic settlement community should be maintained. She suggested that the lots should remain the same size as was historically recorded in 1870. She suggested that the historical character of the neighborhood should be maintained and preserved.

- Mr. John Wall, 140 Wando Reach Court, expressed concern that a significant amount of fill was added to the lots and has subsequently caused additional flooding for the area.

- Mr. Nathaniel Horton, 358 7th Ave, stated that he submitted a letter to the Board outlining the history of how . He referred to Case V-31-16, that upheld the application of setbacks for lot 71 and is relevant to this case as well. He suggested that exacerbation of flooding is a result of higher tides and not development of the lot. He suggested that staff correctly applied the setbacks to the property and their decision should be upheld.

- Mr. Mark Lee, 735 3rd St, expressed concern with Mr. Horton taking down trees after the hours allowed under the noise ordinance. He suggested that this happened on a few occasions. He also expressed concern with the additional fill that has been put on the lot that has exacerbated flooding in the area. He suggested that the ordinances should be upheld.

- Mr. Wood administered the oath to Mr. Hogerty.

- Mr. Derek Hogerty, 167 Harbor Watch, stated that a site improvement plan is required in order to place additional fill on the lot and is available to the public upon request. He stated that all builders must abide by the regulations of the Town and suggested that the public should be aware of all requirements. He also stated that the zoning code was updated on May 1st.

- There being no further comments, Mr. Wood moved to the three minute rebuttal time for the appellants and staff.

- Mr. Robertson rebutted that the marshland is owned by the State and not the property owner, so this portion of the land cannot be included in determining the buildable area. He also stated that the standard would be applied to the high ground as was done.

- Mr. Appel showed a copy of the site plan, rebutted and stated that Mr. Horton owns the surrounding property and those in the marsh as well. He suggested that ownership of the marsh must be determined by a court, which has not been accomplished. He suggested that recorded plat is a claim, not a determination of ownership as ownership of the marshland must be determined through the courts. He suggested that if the setback was assessed per the ordinance, it would significantly alter the amount of high ground that could be developed. He suggested that staff did not appropriately assigned the setbacks to this property.

- Mr. Gaskin rebutted that their analysis and staff's application of the ordinance is correct. He suggested that Mr. Horton had a mean-high water mark survey to determine where his property ended. He suggested that his client has been a good steward in working with the Town and OCRM.

- Mr. Wood moved to Board questions.

- There being no further questions, Mr. Wood closed public comment.

- *Mr. Wood moved for denial of the appeal as the applicant in Case A-06-25, does not have standing as defined by S.C. law. Mr. Branch seconded the motion. Motion passed on a 5 to 1 vote with Mr. Stress, Ms. Woods-Flowers, Mr. Branch, Ms. Spier, and Mr. Wood in favor; Mr. Barrow opposed.*

- *Mr. Wood moved to uphold the Zoning Official's determination on the grounds that they properly applied state and local law to the parcel before them in determining where the setbacks should be measured from. Mr. Branch seconded the motion. All in favor.*

2. **Case A-05-25, 767 3rd Street, TMS# 514-05-00-034**, Appeal of Zoning Official's determination of zoning compliance with §156.303 Residential Use Districts (C) Lot, yard, height, and coverage requirements [Table] Minimum Yard Requirements and §156.106 Setbacks and Yard Requirements (B). Staff Presentation Staff Review Timeline Correspondence

- Mr. Robertson reviewed the staff presentation with the Board.

- Mr. Appel, representative for the appellant, reviewed the request with the Board.

- Mr. Gaskins, attorney for Mr. Horton, reviewed the request with the Board.

- Mr. Bill Dillard, 768 3rd St, stated that he is opposed to the request. He suggested that the development of the proposed lot is exacerbating the flooding and drainage issue and is a public safety issue for young drivers and a line of sight issue. He suggested that the proposed home would inhibit their view and would negatively impact the character of the neighborhood. He asked that the development be denied to protect resident's rights, preserve the environment, and maintain the integrity of the neighborhood.

- Mr. George Bullwinkle, 176 Wando Reach Court, suggested that this is "two spits of land" and too small to be developed. He stated that many of the residents in the community and surrounding communities are concerned

about this development. He expressed concern that it would adversely impact the surrounding ecosystems.

- Mr. Mark Joy, 172 Wando Reach Ct., stated that this development will impact the neighborhood and surrounding communities. He suggested that the stormwater and flooding issues will continue to worsen because of the amount of fill that has been brought onto this property. He expressed concern with the loss of view of the marsh. He suggested that development of this lot will also affect the property values. He suggested that Mr. Horton originally indicated that he was building a small park for the neighborhood to enjoy, not building a residence.

- Ms. Kelly McSweeney, 138 3rd Ave, expressed confusion with the statement that the state owns the marshland. She suggested that the property owners pay taxes on the marshland as well as the high ground. She asked that if owned by the state, then a representative should be in person substantiating that ownership. She suggested that if owned by the state, then the property owners should not have to pay taxes on that land. She suggested that the 30 foot setback should be applied.

- Mr. Tom Blazer, 701 Remley Lane, suggested that the tax map shows the property undevelopable and it should remain as such. He suggested that development of this property poses a public safety issue and pedestrian safety issue because of having no sidewalks.

- Mr. Jim Jones, 112 2nd St, stated that his property is across from 3rd Ave, and he has a deed for two marsh properties. He suggested that the state does not own those properties.

- Ms. Peggy Barnett-McGraw, 148 4th Ave, stated that due to flooding issues, the road was recently closed. She suggested that this was due to the amount of fill that was placed on Mr. Horton's lot. She suggested that the neighborhood was told by Mr. Horton that the property would be turned into a park.

- Mr. Derek Hogarty, 167 Harbor Watch Court, expressed concern with hydro-static pressure water and that it would create an epicenter of water

flow because of the amount of fill that has been placed on the lot. He expressed concern with public safety due to the configuration of the roadway.

- Mr. Nathaniel Horton, owner, stated that his original plan was to build a park in the area. He stated that the lot is located on the outside curve, which would mean less safety issues. He stated that he has been working to develop this lot since 2021.

- Mr. Mark Lee, 735 3rd St, suggested that Mr. Horton did not take the oath at the beginning of the meeting. He suggested that the neighborhood has been repeatedly deceived by Mr. Horton.

- Mr. Gaskins clarified that Mr. Horton was not planning to previously speak as he was represented by counsel. Mr. Wood administered the oath to Mr. Horton.

- Mr. Wood administered the oath to Mr. Bixler.

- Mr. George Bixler, 144 4th Ave, suggested that this is a "predatory land grab" and should not be allowed. He expressed concern with public safety and that the flooding on the corner roadway only worsens the safety issues.

- Mr. Wood administered the oath to Mr. Williams.

- Mr. Scott Williams, 132 Wando Reach Court, stated that he did a Google timeline of the property and was able to see the land grow, walls being established, and trees dying. He expressed concern with the development of the property and that it would exacerbate the flooding in the area.

- Mr. Robertson stated that he had no additional response.

- Mr. Appel rebutted and referred to his exhibits showing pictures of the property and the amount of flooding that occurs. He referred to the aerial photographs of the property and suggested that the shorter side of the property would be the front and should have the front setback applied. He stated that this property and case is different from the previous case.

- Mr. Gaskin rebutted that the code should be upheld. He suggested that there is not a lot of record showing the combined lots.

- There being no Board questions, Mr. Wood closed public comment.

- *Mr. Wood moved for denial of the appeal, Case A-05-25, based on the grounds that the applicant lacks standing under S.C. law to submit an appeal. Mr. Stress seconded the motion. Motion passed on a 5 to 1 vote with Mr. Stress, Ms. Woods-Flowers, Mr. Branch, Ms. Spier, and Mr. Wood in favor; Mr. Barrow opposed.*

- *Mr. Wood moved to uphold the decision of the Zoning Administrator based on the grounds that the facts in evidence that were presented prove that the rules were properly and consistently applied relevant to the measurement of the setback from the mean high-water mark. Mr. Stress seconded the motion. Motion passed on a 5 to 1 vote with Mr. Stress, Ms. Woods-Flowers, Mr. Branch, Ms. Spier and Mr. Wood in favor; Mr. Barrow opposed.*

There being no further business, the meeting adjourned at 2:31 pm.

Submitted by,
L. Lynes
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